

25VECV02475 25VECV02475

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-18

Motion: DEFENDANT AHANG MIRHOJAE'S MOTION TO COMPEL INTIAL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AS TO PLAINTIFFS LORENA RANGEL DE REYES, CARLOS REYES, DEREK RANGEL, SERGIO REYES, EDUARDO REYES, JEFFREY GARCIA, AND DAVID PINEDA

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Case Number: 25VECV02475 Hearing Date: September 18, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LORENA RANGEL DE REYES, an individual; CARLOS REYES, an individual; DEREK RANGEL, an individual; SERGIO REYES, an individual; EDUARDO REYES, an individual; JEFFREY GARCIA, an individual; and DAVID PINEDA, an individual,

Plaintiff,

vs.

AHANG MIRHOJAE, an individual, aka Ahang Zarin Kelk; ALI REZA MIRSHOJAE and NASTARAN ZARRIN KELK, aka Nastavan Zarrin Kauppinen, Co-Trustees of the Jason B. Mirshojae Trust u/t/d/ June 19, 2019; and DOES 1 through 25, inclusive,

Defendants.

CASE NO: 25VECV02475

[TENTATIVE] ORDER RE:

DEFENDANT AHANG MIRHOJAE'S MOTION TO COMPEL INTIAL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AS TO PLAINTIFFS LORENA RANGEL DE REYES, CARLOS REYES, DEREK RANGEL, SERGIO REYES, EDUARDO REYES, JEFFREY GARCIA, AND DAVID PINEDA

Dept. W

8:30 a.m.

September 18, 2026

[TENTATIVE] ORDER: The Court GRANTS Moving Defendant's Motion to Compel Initial Responses to Special Interrogatories, Set One, as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel, Eduardo Reyes, Jeffrey Garcia, and David Pineda. The Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions. Finally, Moving Defendant is ordered to pay the outstanding filing fees for this motion.

Background

This is a habitability case. Defendants are Moving Defendant Ahang Mirshojae, Defendant Ali Reza Mirshojae, and Defendant Nastaran Zarrin Kelk, Co-Trustees of the Jason B. Mirshojae Trust. Defendants own a 10-bedroom rental property located at 21909 Elwood Street, Canoga Park, CA 91304. Plaintiffs, Lorena Rangel de Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, David Pineda, and Defendant Marvin Florian, were residents of this property from February 2020 to August of 2024. The primary lessors were Plaintiffs Lorena and Carlos Reyes.

Plaintiffs allege that numerous habitability issues plagued this property, including: unscheduled rent increases, repeated plumbing breakdowns, Defendant Ahang growing marijuana in one of the guest rooms, multiple invasions of privacy by Defendant Ahang, electricity and water blackouts, and threats of physical violence by Defendant Ahang.

On May 2, 2025, Plaintiffs brought suit against Defendants, alleging eight causes of action: 1) wrongful eviction; 2) violation of CIV § 52.1; 3) breach of the covenant of quiet enjoyment; 4) breach of contract; 5) unfair competition; 6) violation of LA Municipal Code Chapter XV § 151.05(A); 7) breach of implied warranty of habitability; and 8) tortious failure to provide habitable premises.

On October 2, 2025, Moving Defendant propounded Special Interrogatories, Set One (herein, "SROGs"), onto Plaintiffs Lorena Rangel de Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, and David Pineda. Plaintiffs did not respond.

Now, Moving Defendant moves to compel responses to these SROGs.

Procedural Issues

Before addressing the merits of this motion, the Court notes that Moving Defendant's motion is procedurally improper. Moving Defendant has brought a Motion to Compel Initial SROGs as to seven plaintiffs simultaneously. The Government Code, and the Court Reservation System, requires a separate hearing date reservation and filing fees for each motion. Further, it is mandatory for court clerks to demand and receive filing fees for each motion. (See Gov. Code § 70617(f); *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Moving Defendant has only paid one filing fee for what is functionally seven motions. This circumvents the Court's requirements and the strictures of the Government Code. For this reason, Moving Defendant is ordered to pay all additional required motion fees prior to the Court granting these motions.

Discussion

i) Discovery

Moving Defendant moves to compel initial responses to Special Interrogatories, Set One, from all seven of these Plaintiffs. (Mot. to Compel Initial Re: SROGs, p. 7:2-6.)

Under CCP § 2030.290(b), if a party does not respond to a discovery request for interrogatories in a timely fashion, the requesting party can move to compel responses. (CCP § 2030.290(b).)

Here, Moving Defendant propounded SROGs, Set One, onto Plaintiffs on October 2, 2025. (Do Decl. ¶ 2.) Initial responses were due by November 3, 2025. (Id. ¶ 3.) Following multiple extensions, the final response time for these requests was set for April 3, 2026. (Id. ¶ 6.) As of the filing of this motion, none of the seven served Plaintiffs had provided any responses. (Id. ¶ 7.) Notably, no plaintiffs oppose this motion.

For these reasons, the Court GRANTS Moving Defendant's Motion to Compel Initial Responses to Special Interrogatories, Set One, as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel, Eduardo Reyes, Jeffrey Garcia, Carlos Reyes, Sergio Reyes, and David Pineda.

ii) Sanctions

Moving Defendant also requests \$886.65 in discovery sanctions in conjunction with this motion. (Mot. to Compel Initial Re: SROGs, p. 6:22-27.)

Sanctions are mandatory in connection with motions to compel initial discovery unless the non-complying party acted with substantial justification or other circumstances make the imposition sanctions unjust. (CCP § 2030.290(c).)

However, this motion was improperly brought against seven separate Plaintiffs simultaneously. Additionally, it is unclear which Plaintiffs Moving Defendant seeks sanctions against. Moving Defendant's sanctions analysis repeatedly references "plaintiff" in the singular. Given this ambiguity, the Court finds that the imposition of sanctions would be unjust.

For these reasons, the Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions.

Conclusion

The Court GRANTS Moving Defendant's Motion to Compel Initial Responses to Special Interrogatories, Set One, as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel, Eduardo Reyes, Jeffrey Garcia, Carlos Reyes, Sergio Reyes, and David Pineda. The Court DENIES Moving Defendant's request for \$886.65 in discovery sanctions. Finally, Moving Defendant is ordered to pay the outstanding filing fees for this motion.

IT IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 18, 2026

Judge of the Superior Court

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LORENA RANGEL DE

REYES, an individual; CARLOS REYES, an individual; DEREK RANGEL, an

individual; SERGIO REYES, an individual; EDUARDO REYES, an individual; JEFFREY

GARCIA, an individual; and DAVID PINEDA, an individual,

Plaintiff,

vs.

AHANG MIRHOJAE, an individual, aka Ahang

Zarin Kelk; ALI REZA MIRSHOJAE and NASTARAN ZARRIN KELK, aka Nastavan Zarrin

Kauppinen, Co-Trustees of the Jason B. Mirshojae Trust u/t/d/ June 19, 2019;

and DOES 1 through 25, inclusive,

Defendants.

CASE NO: 25VECV02475

[TENTATIVE]

ORDER RE:

DEFENDANT

AHANG MIRHOJAE'S MOTION TO COMPEL INTIAL RESPONSES TO REQUESTS FOR PRODUCTION,

SET ONE, AS TO PLAINTIFFS LORENA RANGEL DE REYES, CARLOS REYES, DEREK RANGEL,

SERGIO REYES, EDUARDO REYES, JEFFREY GARCIA, AND DAVID PINEDA

Dept. W

8:30 a.m.

September 18, 2026

[TENTATIVE] ORDER: The Court GRANTS

Moving Defendant's Motion to Compel Initial Responses to Requests for

Production, Set One, as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel,

Eduardo Reyes, Jeffrey Garcia, and David Pineda. The Court DENIES Moving

Defendant's request for \$886.65 in discovery sanctions. Finally, Moving

Defendant is ordered to pay the outstanding filing fees for this motion.

Background

This

is a habitability case. Defendants are Moving Defendant Ahang Mirshojae, Defendant

Ali Reza Mirshojae, and Defendant Nastaran Zarrin Kelk, Co-Trustees of the

Jason B. Mirshojae Trust. Defendants own a 10-bedroom rental property located

at 21909 Elkwood Street, Canoga Park, CA 91304. Plaintiffs, Lorena Rangel de

Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia,

David Pineda, and Defendant Marvin Florian, were residents of this property

from February 2020 to August of 2024. The primary lessors were Plaintiffs

Lorena and Carlos Reyes.

Plaintiffs allege that numerous habitability issues plagued this property, including: unscheduled rent increases, repeated plumbing breakdowns, Defendant Ahang growing marijuana in one of the guest rooms, multiple invasions of privacy by Defendant Ahang, electricity and water blackouts, and threats of physical violence by Defendant Ahang.

On May 2, 2025, Plaintiffs brought suit against Defendants, alleging eight causes of action: 1) wrongful eviction; 2) violation of CIV § 52.1; 3) breach of the covenant of quiet enjoyment; 4) breach of contract; 5) unfair competition; 6) violation of LA Municipal Code Chapter XV § 151.05(A); 7) breach of implied warranty of habitability; and 8) tortious failure to provide habitable premises.

On October 2, 2025, Moving Defendant propounded Requests for Production, Set One (herein, "RFPs"), onto Plaintiffs Lorena Rangel de Reyes, Carlos Reyes, Derek Rangel, Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, and David Pineda.

Plaintiffs did not respond.

Now, Moving Defendant moves to compel responses to these RFPs.

Procedural Issues

Before addressing the

merits of this motion, the Court notes that Moving Defendant's motion is

procedurally improper. Moving Defendant has brought a Motion to Compel Initial RFPs

as to seven plaintiffs simultaneously. The Government Code, and the Court

Reservation System, requires a separate hearing date reservation and filing

fees for each motion. Further, it is mandatory for court clerks to demand and

receive filing fees for each motion. (See Gov. Code § 70617(f); *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Moving Defendant has only paid one

filing fee for what is functionally seven motions. This circumvents the Court's

requirements and the strictures of the Government Code. For this reason, Moving

Defendant is ordered to pay all additional required motion fees prior to the

Court granting these motions.

Discussion

i)

Discovery

Moving Defendant moves to compel initial responses to Requests for

Production, Set One, from all seven of these Plaintiffs. (Mot. to Compel

Initial Re: RFPs, p. 8:12-17.)

Under CCP § 2031.300(b), if a party does not respond to a discovery

request for production in a timely fashion, the requesting party can move to compel

responses. (CCP § 2030.290(b).)

Here, Moving Defendant propounded RFPs, Set One, onto Plaintiffs on

October 2, 2025. (Do Decl. ¶ 2.) Initial responses were due by November 3, 2025. (Id. ¶ 3.) Following multiple extensions, the final response time for these requests was set for April 3, 2026. (Id. ¶ 6.) As of the filing of this motion, none of the seven served Plaintiffs had provided any responses.

(Id. ¶ 7.) Notably, no plaintiffs oppose this motion.

For these reasons, the Court GRANTS Moving Defendant's Motion to Compel Initial Responses to Requests for Production, Set One, as to Plaintiffs Lorena Rangel de Reyes, Derek Rangel, Eduardo Reyes, Jeffrey Garcia, Carlos Reyes, Sergio Reyes, and David Pineda.

ii)

Sanctions

Moving Defendant also requests \$886.65 in discovery sanctions in conjunction with this motion. (Mot. to Compel Initial Re: RFPs, p. 8:3-9.) Sanctions are mandatory in connection with motions to compel initial RFPs unless the non-complying party acted with substantial justification or other circumstances make the imposition sanctions unjust. (CCP § 2031.300(c).)

However, this motion was improperly brought against seven separate Plaintiffs simultaneously. Additionally, it is unclear which Plaintiffs Moving Defendant seeks sanctions against. Moving Defendant's sanctions analysis

repeatedly references "plaintiff" in the singular. Given this ambiguity, the

Court finds that the imposition of sanctions would be unjust.

For these reasons, the Court DENIES Moving Defendant's request for

\$886.65 in discovery sanctions.

Conclusion

The Court GRANTS Moving Defendant's Motion to Compel Initial Responses

to Requests for Production, Set One, as to Plaintiffs Lorena Rangel de Reyes,

Derek Rangel, Eduardo Reyes, Jeffrey Garcia, Carlos Reyes, Sergio Reyes, and

David Pineda. The Court DENIES Moving Defendant's request for \$886.65 in

discovery sanctions. Finally,

Moving Defendant is ordered to pay the outstanding filing fees for this motion.

IT

IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 18, 2026

Judge of the Superior Court